



POLICE DEPARTMENT

September 7, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Deyanira Gomez
Tax Registry No. 906356
Brooklyn Court Section
Disciplinary Case Nos. 85389/09 & 86085/10

The above-named member of the Department appeared before me on May 12 and May 13, 2010, charged with the following:

Disciplinary Case No. 85389/09

1. Said Police Officer Deyanira Gomez, assigned to Brooklyn Court Section while on-duty, on or about June 12, 2009, having been directed by New York City Police Deputy Inspector Jeffrey Mishula, to comply with the directives of the [REDACTED] Unit to participate in an [REDACTED], did fail and neglect to comply with said order.

P.G. 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS

Disciplinary Case No. 86085/10

1. Said Police Officer Deyanira Gomez, assigned to the Brooklyn Court Section, on or about November 24, 2009, wrongfully made false or misleading statements to Medical District personnel exaggerating the extent of her injury or medical condition.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Deyanira Gomez, assigned to the Brooklyn Court Section, on or about November 24, 2009, after being notified to appear at the Special Medical District at 0800 hours, reported to the Special Medical District approximately five (5) hours late.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

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3. Said Police Officer Deyanira Gomez, assigned to the Brooklyn Court Section, on or about November 28, 2009, after being discharged from [REDACTED] Hospital, failed to notify the Medical Division about her whereabouts while on sick report.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

4. Said Police Officer Deyanira Gomez, assigned to the Brooklyn Court Section, on or about December 4, 2009, after being directed by Sergeant Bruce, Absence Control and Investigations Unit, to report to the Special Medical District, failed to obey said lawful order and did not report to the Special Medical District.

P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS

5. Said Police Officer Deyanira Gomez, assigned to the Brooklyn Court Section, while being [REDACTED] or about December 8, 2009, failed to report to the Special Medical District as ordered by Sergeant Auriana, Absence Control and Investigations Unit, due to her reported inability to travel, which, after an examination was conducted by Medical District personnel, was determined false.

P.G. 205-45, Page 2, Additional Data – CHRONIC ABSENCE CONTROL
PROGRAM

P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS

The Department was represented by Daniel Maurer, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 85389/09

The Respondent is found Guilty.

Disciplinary Case No. 86085/10

The Respondent is found Not Guilty of Specification No. 1. The Respondent is found Guilty of Specification Nos. 2 through 5.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Deputy Inspector Jeffrey Mishula, Lieutenant Dominick Valenti, Sergeant Nicholas Auriana, Sergeant Donald Bruce, Dr. Peter Galvin and Dr. David Lichtenstein as witnesses, and Sergeant Michael Hengel as a rebuttal witness.

Deputy Inspector Jeffrey Mishula

Deputy Inspector Mishula, who is assigned to the Department's Medical Division, recalled that on June 12, 2009, he personally met with the Respondent and ordered her to comply with the directive of the Employee Relations [REDACTED] Unit (the [REDACTED] Unit), by participating in [REDACTED]. The Respondent told him that she would not comply with his order. Mishula testified that he issued this order to the Respondent after Sergeant Daniel Sweeney, commanding officer of the [REDACTED] Unit, contacted him and told him that the [REDACTED] Unit had determined that the Respondent had [REDACTED] and needed [REDACTED]. Mishula specifically recalled that Sweeney had told him that the Respondent had admitted to the [REDACTED] Unit that she had been [REDACTED]. Mishula also recalled that Sweeney had told him that the Respondent "had charted way

over the top” and that she was “a train wreck.” Mishula further recalled that he had asked Sweeney whether it was possible for the Respondent to attend an [REDACTED]

[REDACTED] Sweeney responded that the Respondent had to attend [REDACTED] [REDACTED] that was what she needed. Sweeney told him that the Respondent had refused to comply with directives of the [REDACTED]g Unit that she attend [REDACTED] [REDACTED] and that the [REDACTED] Unit was “at a dead end with her.”

On cross-examination, when Mishula was asked if he agreed that it was unprofessional for a counselor to refer to someone as “a train wreck,” Mishula responded that he did not consider it unprofessional for Sweeney to refer to the Respondent as “a train wreck” during their conversation because Sweeney was trying to “paint a picture” of the Respondent in order to “make a case” to Mishula that she needed help badly and needed to [REDACTED]. Mishula confirmed that the counselors assigned to the [REDACTED] Unit are certified as [REDACTED] Counselors by the State of New York and that Sweeney had told him that the Respondent had “charted” at a level above the level necessary to make a determination that she needed to [REDACTED]. Mishula confirmed that the Respondent came directly from the [REDACTED] Unit to his office, that she appeared normal to him and that she was not unfit for duty.

Lieutenant Dominick Valenti

Lieutenant Dominick Valenti, who is assigned as commanding officer of the Medical Division’s Absence Control Unit, testified that the Respondent was notified to appear at the Special Medical District on November 24, 2009, at 0800 hours. On

November 24, 2009, Valenti worked a day tour at the Special Medical District. The Respondent did not appear there at 0800 hours. She reported to the Special Medical District at 1309 hours. He recalled that he was present in the District Surgeon's office when the Respondent was interviewed by Dr. David Lichtenstein.

Valenti recalled that Dr. Lichtenstein did not perform a physical examination of the Respondent. He stated that she reported sick on November 28, 2009, at 0427 hours, and stated that she was going to [REDACTED]. Valenti asserted that pursuant to Patrol Guide Procedure No. 205-01, the Respondent was required to notify the Department as soon as she was discharged from [REDACTED].

On December 1, 2009, a Department nurse informed Valenti that the Respondent had already been discharged from [REDACTED]. The Respondent had not notified the Department about her discharge. When the Respondent did not appear at the Special Medical District from December 4, 2009 through December 7, 2009, Valenti directed Sergeant Nicholas Auriana to go to the Respondent's residence on December 7, 2009, and order her to appear at the Special Medical District the next day, December 8, 2009, at 0800 hours.

The Respondent and Valenti had a telephone conversation on December 8, 2009, at 0700 hours, in which the Respondent stated that she could not appear at the Special Medical District at 0800 hours because she could not walk, she had no ride to the Special Medical District and because her therapist was coming to her residence that morning. Valenti related this conversation to Dr. Peter Galvin and Sergeant Donald Bruce. Dr. Galvin and Sergeant Bruce then went to the Respondent's residence. Dr. Galvin examined the Respondent at her residence and found her fit to travel.

Valenti testified that as a result of her multiple sick leave absences, the Respondent had been designated [REDACTED] on January 5, 2009, and that she had been presented with a [REDACTED] form, which she signed, which informed her that if she was "found fit for duty after examination by the Special Medical District Surgeon" she could be suspended if she reported sick again. [Department's Exhibit (DX) 1]

On cross-examination, Valenti confirmed that Dr. Lichtenstein did not perform any physical examination of the Respondent on November 24, 2009. Valenti acknowledged that when the Respondent reported sick on November 28, 2009, and went to [REDACTED], he does not know where she left from to go to the hospital or how she got there. Valenti confirmed that the Respondent has not reported sick during 2010.

Sergeant Nicholas Auriana

Sergeant Nicholas Auriana who is assigned to the Medical Division's Absence Control Unit, testified that Valenti directed him to go to the Respondent's residence on December 7, 2009, and to order the Respondent to appear at the Special Medical District on December 8, 2009.

Sergeant Auriana recalled that when he knocked on the front door of the Respondent's residence on December 7, 2009, the Respondent opened the door. Sergeant Auriana did not enter the Respondent's residence. When he relayed Valenti's order to the Respondent that she had to report to the Special Medical District the next day, the Respondent told him, "Okay. I understand." The Respondent did not appear at the Special Medical District on December 8, 2009.

Sergeant Donald Bruce

Sergeant Donald Bruce, who is assigned to the Medical Division's Absence Control Unit, testified that Valenti directed him to go to the Respondent's residence on December 3, 2009, and order her to appear at the Special Medical District the next day, December 4, 2009 at 0800 hours. When Bruce issued this direction to the Respondent, she told him that she could not travel until her physician gave her permission to leave her house. The Respondent did not appear at the Special Medical District on December 4, 2009.

On cross-examination, Bruce confirmed that when he arrived at the front door of the Respondent's residence on December 3, 2009, the Respondent was using a walker when she opened the door. He simply informed her of Valenti's order. He did not ask her any questions.

Dr. Peter Galvin

Dr. Peter Galvin, a physician assigned to the Special Medical District, testified that on December 8, 2009, Valenti related a telephone conversation he had just had with the Respondent in which the Respondent stated that she could not appear at the Special Medical District because she could not travel. Dr. Galvin, Sergeant Bruce and Sergeant Engel immediately went to the Respondent's residence. Inside the Respondent's residence, the Respondent complained of feeling very weak, dizzy and experiencing a tingling feeling. Dr. Galvin performed a physical examination solely to determine whether she was capable of traveling to the Special Medical District. Dr. Galvin's physical examination of the Respondent consisted of conducting a muscle strength test

and checking for muscle atrophy. Dr. Galvin concluded from this physical examination that the Respondent was capable of traveling to the Special Medical District as a passenger in a car. He then left the Respondent's residence.

On cross-examination, Dr. Galvin testified that his December 8, 2009, physical examination of the Respondent took about 15 minutes. Dr. Galvin testified that he took into consideration the effect on the Respondent's health of traveling to the Special Medical District as a passenger in a car. Dr. Galvin recalled that he saw the Respondent on November 18, 2009, and he was aware that the Respondent had been hospitalized two times during November, 2009.

Dr. David Lichtenstein

Dr. David Lichtenstein, the Department's Deputy Chief Surgeon, testified that when he first observed the Respondent on November 24, 2009, the Respondent was standing outside his office. The Respondent appeared to have difficulty walking. She walked with a short gait and someone was supporting her by holding her at the elbow. He opined that she was walking as if she had Parkinson's disease. He recalled that it took about five minutes for the Respondent to walk about 20 feet from the waiting room into his office. Before he commenced his examination, Dr. Lichtenstein read the Respondent's Article 2 disability pension application and records that had been provided by the Respondent's personal physician, Dr. [REDACTED]. Dr. Lichtenstein testified that he saw nothing in these records which would indicate that the Respondent should not be able to ambulate without assistance. He conducted range of motion testing on her legs. During this examination, he took handwritten notes. He testified that these handwritten

notes indicate that a family member told him that the Respondent could not walk more than a few feet. He recalled that the Respondent also told him this, but he did not write this down in his notes.

When the Respondent reported sick on November 25, 2009, Dr. Lichtenstein telephoned the Respondent's personal physician, Dr. [REDACTED]. He stated that the Respondent could ambulate without assistance and could perform light secretarial duties.

On cross-examination, he testified that when, on November 24, 2009, he observed the Respondent having difficulty walking, he believed that it was a staged or rehearsed type of walk. He stated that he had no psychiatric training and that he had offered his description on direct examination that she was walking as if she had Parkinson's disease only for lack of a better description. His range of motion testing on her legs took less than three minutes. He saw 150 other people that day.

On redirect-examination, he was shown his handwritten notes (DX 2) [In these notes, he wrote: "states she can not walk more than a few feet."]

He retracted his prior testimony that a family member had made this statement and he asserted that it was the Respondent who had stated that she could not walk more than a few feet. He explained that his earlier testimony on direct examination that a family member had said this to him was a mistake caused because he had misread his own notes on the stand.

On re-cross-examination, he stated that he had not reviewed his handwritten notes before he was called to testify at his trial.

Sergeant Michael Hengel

Called as a rebuttal witness by the Department, Sergeant Michael Hengel, assigned to the Medical Division's Absence Control and Investigations Unit, testified that because he has served in the Medical Division for 15 years, he is familiar with all of the supervisors who have been assigned to the Medical Division's Sick Desk on both the daytime and evening tours and that no sergeant having a last name of Cuna, Plaza or Blaza has been assigned to the Medical Division.

On cross-examination, he confirmed that police officers are also assigned to the Medical Division's Sick Desk on both day and evening tours. He confirmed that he does not know the names of all of the police officers who are assigned to the Medical Division's Sick Desk. He testified that the Sick Desk has four telephone lines, one of which is for the supervisor.

The Respondent's Case

The Respondent testified in her own behalf.

The Respondent

The Respondent testified that her present duty status is "restricted and modified" as the result of an on duty injury she suffered in 2008 when a large gate at Central Booking snapped and fell on her while she was transporting prisoners. The gate landed on her back and her right elbow and knocked her onto the floor. She was pulled out from underneath the gate and transported to the hospital. It was determined that she had suffered damage to her "[REDACTED]" and that she had [REDACTED] radiating up her "[REDACTED]"

█████.” She underwent surgery to repair a right rotator cuff tear and she attended 15 physical therapy sessions. She has also “seen a ██████ to deal with the ██████ and ██████ that has resulted from this injury.” She has been examined by numerous medical specialists. During the summer of 2009, she was taking the prescribed pain medications, ██████.

On or about June 11, 2009, she went to the Special Medical District to speak to Dr. Galvin. She told him that her injuries make it very difficult for her to perform the repetitive, computer-related “paperwork” duties she had been assigned to perform, often on ordered overtime, at the Brooklyn Court Section and that she was “suffering from ██████” experiencing migraine headaches and her hands were swollen. She requested a transfer. Dr. Galvin recommended that she go to Psychological Services. Psychological Services personnel referred her to the ██████ Unit. Counselors at the ██████ Unit recommended that she participate in an ██████ ██████. She told the counselors at the ██████g Unit that she did not have ██████ and that she did not want to attend ██████

The Respondent recalled that when, on June 12, 2009, Deputy Inspector Mishula gave her “a direct order” that she must comply with the directives of the ██████ Unit and attend in an ██████ she felt that she “was being crucified” by the Department because she is no ██████. The Respondent testified that she told Mishula that she was not going to comply with his order that she participate in an ██████ and he then suspended her. She resumed her “restricted and modified” duties at the Brooklyn Court Section 30 days later.

On November 10, 2009, she was involved in an automobile accident when her car was "rear-ended" by another driver while she was stopped at a stop light. She "re-injured" her neck, back and shoulder. She was hospitalized from November 17, 2009 until November 21, 2009.

The Respondent recalled that she received a notification to report to the Special Medical District on November 24, 2009. It took her two hours to travel from her home on [REDACTED] to the Special Medical District in Corona, Queens, on November 24, 2009. She was told to walk to Dr. Lichtenstein's office on the other side of the building. It took her a long time to complete this walk because she felt "numb" and needed the support of a friend who had accompanied her to the Special Medical District. When she arrived at Dr. Lichtenstein's office, he began screaming at her, "Are you kidding me? Is this as fast as you can walk? You gotta be kidding me, right?" Dr. Lichtenstein did not examine her and she was in his office for no more than five minutes.

On November 28, 2009, an ambulance took her to [REDACTED] from her mother's house. She was re-hospitalized because her back hurt and she was losing sensation in her legs. The Respondent testified that on December 1, 2009, she was discharged from [REDACTED]. When she arrived home at 2300 hours, she called the Medical Division and told a "Sergeant Cuna or something like that" that she had been discharged. He told her that she was not listed in the hospital log.

The Respondent recalled that as of December 4, 2009, she had not yet returned to work. On December 3, 2009, Sergeant Bruce came to her home and ordered her to report to the Special Medical District the next day at 0800 hours and that if she did not do so she could be suspended. She called the Medical Division and spoke to a "Sergeant Plaza."

She told him that she could not leave her house until she “got taught how to ambulate with my walker” and until she “had someone assisting me.”

The Respondent testified that on December 8, 2009, Sergeant Auriana came to her home to ask why she had not reported the Special Medical District. Dr. Galvin came to her home that same day. He tapped her knee with a rubber hammer and made her do a “stretching test.” As he left, he said that he would be back but he did not come back. She was not ordered to report to the Special Medical District. She recalled that on that day she was waiting for her physical therapist to arrive to teach her how to ambulate with her walker. Either Sergeant Auriana or Sergeant Bruce came to her home and told her that she was being suspended.

The Respondent testified that she has filed a disability pension application because she has [REDACTED] which has “gotten worse.”

On cross-examination, the Respondent testified that she did not know how late she was in reporting to the Special Medical District on November 24, 2009, but that she had been ordered to appear at 0800 hours. A friend brought her to another friend’s house and she took a cab from there to the Special Medical District in Queens. The Respondent testified that if she had support assistance, she could walk the length of three times the length of the trial room. On November 24, 2009, her disability pension evaluation was filled out by the Respondent’s personal physician, Dr. [REDACTED]. When she was discharged from [REDACTED], she called the Medical Division and spoke to Sergeant Cuna. She did not write his name down.

FINDINGS AND ANALYSISDisciplinary Case No. 85389/09

It is charged that the Respondent failed to comply with an order issued on June 12, 2009 by Deputy Inspector Mishula that she comply with the directives of the [REDACTED] Unit by participating in [REDACTED]. The Respondent corroborated Deputy Inspector Mishula's testimony by admitting that she had told him that she would not comply with his direct order that she participate in [REDACTED] [REDACTED]. A member must comply with a direct order issued by a superior officer unless the order requires the member to engage in what is clearly illegal or improper conduct. Thus, if the Respondent believed that Deputy Inspector Mishula's order that she comply with the directives of the [REDACTED] Unit and participate in [REDACTED] improper or invalid, her only remedy was to comply with the order and then contest the order post-compliance.

The Respondent is found Guilty.

Disciplinary Case No. 86085/10Specification No. 1

It is charged that the Respondent made false or misleading statements to Medical District personnel on November 24, 2009, in which she exaggerated the extent of her injury or medical condition by telling Dr. Lichtenstein that she "can not walk more than a few feet." (DX 2)

It is clear that Dr. Lichtenstein had no real present recollection of his meeting with the Respondent based on his testimony that his range of motion testing on her legs took less than three minutes, that he saw 150 other people that day, and, most

significantly, his initial, inaccurate testimony that it was a family member who had told him that the Respondent could not walk more than a few feet. Dr. Lichtenstein's explanation that his inaccurate initial testimony was caused by a misreading of his own notes establishes that these notes constitute the Department's only evidence as to what the Respondent told Dr. Lichtenstein about her medical condition.

Although Dr. Lichtenstein testified that he believed that the Respondent's difficulty walking, and need for support, as she slowly walked the short distance into his office was feigned, the Department offered no testimony that the Respondent had been observed (during a surveillance or otherwise) on or about November 24, 2009, walking in a normal manner without any support. On the contrary, Sergeant Bruce confirmed that when he observed the Respondent at her residence on December 3, 2009, the Respondent was using a walker. Thus, the only evidence offered by the Department to prove that her statement to Dr. Lichtenstein that she could not walk more than a few feet constituted an exaggeration of the extent of her injury or medical condition, is Dr. Lichtenstein's testimony that his review of some of the Respondent's medical records indicated that the Respondent should have been able to ambulate without assistance, Dr. Lichtenstein's "less than three minutes" range of motion examination of her legs, and Dr. Lichtenstein's testimony that he suspected that her slow pace and gait were staged.

Absent observation testimony (or a surveillance video) showing the Respondent on or about November 24, 2009, walking in a normal manner without support, the Department does not appear to have met its burden of presenting sufficient evidence to prove this alleged exaggeration.

The Respondent is found Not Guilty.

Specification No. 2

It is charged that the Respondent on November 24, 2009, after being notified to appear at the Special Medical District at 0800 hours, reported to the Special Medical District approximately five (5) hours late. The Respondent corroborated Valenti's testimony by admitting on direct examination that she had received a notification to appear at the Special Medical District on November 24, 2009. On cross-examination, the Respondent further acknowledged that she did not know how late she had been in reporting to the Special Medical District on November 24, 2009. I credit Valenti's testimony that the Respondent was notified that she was supposed to appear at 0800 hours and that she finally appeared at the Special Medical District at 1309 hours.

The Respondent is found Guilty.

Specification No. 3

It is charged that the Respondent, on or about November 28, 2009, after being discharged from [REDACTED], failed to notify the Medical Division about her whereabouts while on sick report. It was the Respondent's responsibility not only to call the Medical Division's Sick Desk as soon as she was discharged from [REDACTED] but also to make a note regarding the name of the person she had notified. She admitted that she did not do this. I credit Hengel's testimony that because he has served in the Medical Division for 15 years, he is familiar with all of the supervisors who have been assigned to the Medical Division and that no sergeant having the last name of Cuna, the

sergeant the Respondent asserted she spoke to, has been assigned to the Medical Division.

The Respondent is found Guilty.

Specification No. 4

It is charged that on December 4, 2009, the Respondent failed to comply with Sergeant Bruce's order that she report to the Special Medical District. The Respondent admitted that she did not obey this order to report to the Special Medical District. The Respondent asserted that she could go there until someone had showed her how to use her walker and that her doctor had told her not to go out of her house unless she was with someone. It was the Respondent's responsibility to learn how to use her walker and to obtain assistance so that she could comply with Sergeant Bruce's order.

The Respondent is found Guilty.

Specification No. 5

It is charged that while she was on [REDACTED], she failed to report to the Special Medical District on December 8, 2009, as she had been ordered to do by Sergeant Auriana on December 7, 2009, due to her reported inability to travel, which, after an examination was conducted by Medical District personnel, was determined false. The Respondent acknowledged that she told both Valenti and Dr. Galvin that she was unable to travel. Dr. Galvin's testimony that he concluded, after his physical examination of the Respondent, that she was capable of traveling from her home to the Special Medical District as a passenger in a car is supported by the fact that the

Respondent acknowledged that she had been able to ride in a taxi to travel to the Special Medical District on November 24, 2009. She offered no plausible testimony that her ability to sit inside a car had drastically changed for the worse between November 24, 2009 and December 8, 2009.

The Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on February 28, 1994. Information from her personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found guilty of having failed to comply with orders to appear at the Special Medical District and an order issued by Deputy Inspector Mishula order that she follow the directive of the [REDACTED] Unit by participating in [REDACTED]
[REDACTED]

In evaluating this misconduct to determine an appropriate penalty recommendation, I have taken into consideration the fact that the Respondent suffered a line of duty injury which resulted in her being prescribed pain medications to relieve her suffering. The Assistant Department Advocate recommended that the Respondent forfeit the 61 days she served on pre-trial suspension, that she be suspended for an additional 30 days and that she be required to serve one year on dismissal probation.

In Disciplinary Case Nos. 82402/06, 82510/07, 82635/07 & 82732/07 (signed on May 28, 2008), a 16-year member with no prior disciplinary record forfeited 123 suspension days (including 93 days already served on suspension) and was placed on one year dismissal probation for failing to comply with three orders to attend in-patient counseling. In addition, she twice left her residence without permission while on sick leave, made a false entry in the Medical Division sign-out log, and was AWOL for two hours. In that case, as here, the Respondent suffered from a medical condition.

I agree that the imposition of a one year period of dismissal probation is appropriate here to ensure that the Respondent complies with sick leave procedures and with all further orders. However, I believe that it constitutes a sufficient penalty for the Respondent to forfeit only the 61 days she served on pre-trial suspension,

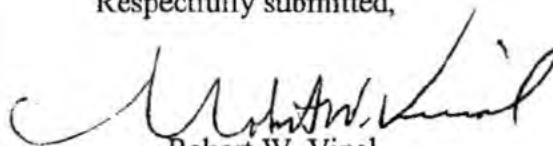
Therefore, it is recommended that the Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year, pursuant to Section 14-115(d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

The Respondent was suspended from June 12, 2009 to July 12, 2009, a total of 31 days served on suspension. The Respondent was then suspended from December 8, 2009 to January 6, 2010, a total of 30 days served on suspension. It is further recommended that the Respondent forfeit the 61 days she served on pre-trial suspensions.

Respectfully submitted,

APPROVED
OCT 20 2010

RAYMOND W. KELLY
POLICE COMMISSIONER


Robert W. Vinal
Assistant Deputy Commissioner – Trials

POLICE DEPARTMENT
CITY OF NEW YORK

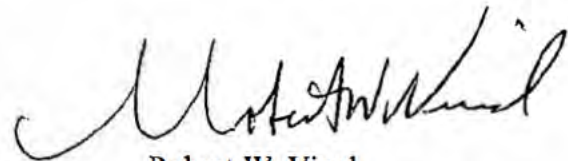
From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DEYANIRA GOMEZ
TAX REGISTRY NO. 906356
DISCIPLINARY CASE NOS. 85389/09 & 86085/10

The Respondent received an overall rating of 3.0 on her 2009 performance evaluation, 3.0 on her 2008 evaluation, and 4.0 on her 2007 evaluation. She has been awarded one Excellent Police Duty medal. [REDACTED]
[REDACTED]

She has a prior formal disciplinary record. She forfeited 45 vacation days after she was found guilty after trial of improperly using pepper spray against civilians on two separate occasions during 2004 without sufficient legal authority. She was also found guilty after trial of having been discourteous to a lieutenant and to a sergeant during an incident in 2005.

On August 24, 2009, she was placed in Level-II Discipline Monitoring based on her overall record. On December 9, 2009, she was placed in Level-III Special Monitoring based on poor performance.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials